



FLORIDA DEPARTMENT OF Environmental Protection

Bob Martinez Center
2600 Blair Stone Road
Tallahassee, FL 32399-2400

Ron DeSantis
Governor

Jay Collins
Lt. Governor

Alexis A. Lambert
Secretary

May 19, 2026

Baxter's Asphalt & Concrete, Inc. d/b/a/ Dolomite, Inc.
c/o David Sloan
P.O. Box 938
Marianna, FL 32447
Email: sloand54@hotmail.com

Dorothy A Baxter Trust Estate
c/o Kathy Sloan
P.O. Box 938
Marianna, FL 32447
Email: sloank@hotmail.com

**RE: Minor Modification – Hydrological Monitoring Change
Rocky Creek Mine
File No.: MMR_215039-005
Jackson County**

Dear Representative,

On March 20, 2026, the Florida Department of Environmental Protection (Department) received your request to modify the Environmental Resource Permit No. MMR_215039-002, to reduce the hydrologic monitoring frequency for the Rocky Creek Mine.

On January 6, 2026, the Department issued Environmental Resource Permit (ERP) No. MMR_215039-002 for an approximately 485.16-acre limestone mine in Jackson County.

There will be no additional wetland or other surface water impacts as a result of this modification. This modification does not alter the remaining Specific Conditions or General Conditions of the permit. The expiration date of January 6, 2046, as seen in MMR_215039-002, remains unchanged. The proposed modification is not expected to result in any adverse environmental impact or water quality degradation. Therefore, the permit is hereby modified.

The following Specific Condition of Permit No. MMR_215039-002 is hereby modified as follows:

- 33. Groundwater Quality Monitoring.** Prior to the initiation of any land clearing or construction activity in preparation for mining, the permittee shall:
- a. Install monitoring wells (MW) and Piezometers (PZ) as shown in the approved version of the site's "Water Monitoring Plan".

- 1) The permittee shall give at least 72-hours' notice to the Department prior to the installation of any monitoring devices.
 - 2) Prior to construction of ground water monitoring wells, a soil boring shall be made at each monitoring well location in accordance with Developing a Groundwater Quality Monitoring Plan for Non-Phosphate Mining Projects, Florida Department of Environmental Protection, Division of Water Resource Management, 2016. This is in order to properly determine the well depth and screen interval;
 - 3) For installation, the permittee shall follow the guidance provided in the, Monitoring Well Design and Construction Guidance Manual, Florida Department of Environmental Protection, Bureau of Water Facilities Regulation, 2008;
 - 4) Within 30 days after installation of monitoring devices, the applicant shall submit to the Department detailed information on the location and construction of each device. The permittee may use the applicable WMD well completion form or DEP Form #62-520.900(3), Monitoring Well Completion Report.
- b. Within 60 days of issuance of this Permit, and within 30-day of installation of the monitoring wells, the permittee shall complete one initial water quality sampling event at all wells. This sample will be in addition to the annual monitoring detailed in part c below. Initial sampling parameters shall include pH, temperature, specific conductivity, total dissolved solids (TDS), nitrite, nitrate, chloride, sulfate, arsenic, iron, gross alpha, uranium, and combined radium 226 and 228. The initial sample shall be submitted to the Department immediately after the results are received by the permittee.
- c. Thereafter, sampling shall be conducted ~~quarterly (every three months)~~ **annually in the fourth quarter of every year:**
- ~~1) During the first three quarters of the calendar year, water quality samples from the wells shall be analyzed for the following parameters: total dissolved solids (TDS), gross alpha, uranium, and combined radium 226 and 228.~~
 - 2) **1)** During the fourth quarter of the calendar year (annually), water quality samples shall be analyzed for total dissolved solids (TDS), nitrite, nitrate, chloride, sulfate, arsenic, iron, gross alpha, uranium, and combined radium 226 and 228.
 - 3) **2)** After one year of annual monitoring for the above referenced analytes, the Department may work with the permittee to adjust the necessary analytes to be monitored going forward depending on the ambient conditions; OR After one year of annual monitoring the permittee may propose a modified parameter list for the Department's consideration and request a minor modification.
- d. As mining activity encroaches into the northern expansion area near MW2 (Within 600-ft) referred to as "Pit 7", or upon notice by the Department, the permittee will conduct monitoring as detailed in part c above at MW2.
- e. The monitoring report detailing the results of all the sampling along with the certified laboratory analysis work sheets shall be submitted with the annual narrative report. The

monitoring may be discontinued one (1) year after all extraction has ended on the site;

- f. If any water quality monitoring wells become damaged or inoperable, the permittee shall notify the Department immediately and a detailed written report shall follow within seven days. The written report shall detail what problem occurred and remedial measures that have been taken to prevent recurrence. All water quality monitoring well design and replacement shall be approved by the Department prior to installation;
- g. The wells shall be sampled in accordance with the current version of Florida Department of Environmental Protection standard operating procedure (SOP) DEP-SOP-001/01, FS 2200 Groundwater Sampling. A Groundwater Sampling Log (included in the referenced SOP) shall be completed for each well sampled. The groundwater samples shall be analyzed by a NELAC-certified laboratory.

NOTICE OF RIGHTS

This action is final and effective on the date filed with the Clerk of the Department unless a petition for an administrative hearing is timely filed under Sections 120.569 and 120.57, F.S., before the deadline for filing a petition. On the filing of a timely and sufficient petition, this action will not be final and effective until further order of the Department. Because the administrative hearing process is designed to formulate final agency action, the subsequent order may modify or take a different position than this action.

Petition for Administrative Hearing

A person whose substantial interests are affected by the Department's action may petition for an administrative proceeding (hearing) under Sections 120.569 and 120.57, F.S. Pursuant to Rule 28-106.201, F.A.C., a petition for an administrative hearing must contain the following information:

- a) the name and address of each agency affected and each agency's file or identification number, if known;
- b) the name, address, and telephone number of the petitioner; the name, address, and telephone number of the petitioner's representative, if any, which shall be the address for service purposes during the course of the proceeding; and an explanation of how the petitioner's substantial interests are or will be affected by the agency determination;
- c) a statement of when and how the petitioner received notice of the agency decision;
- d) a statement of all disputed issues of material fact. If there are none, the petition must so indicate;
- e) a concise statement of the ultimate facts alleged, including the specific facts that the petitioner contends warrant reversal or modification of the agency's proposed action;

- f) a statement of the specific rules or statutes that the petitioner contends require reversal or modification of the agency's proposed action, including an explanation of how the alleged facts relate to the specific rules or statutes; and
- g) a statement of the relief sought by the petitioner, stating precisely the action that the petitioner wishes the agency to take with respect to the agency's proposed action.

The petition must be filed (received by the Clerk) in the Office of General Counsel of the Department at 3900 Commonwealth Boulevard, Mail Station 35, Tallahassee, Florida 32399-3000, or via electronic correspondence at Agency_Clerk@dep.state.fl.us. Also, a copy of the petition shall be mailed to the applicant at the address indicated above at the time of filing.

Time Period for Filing a Petition

In accordance with Rule 62-110.106(3), F.A.C., petitions for an administrative hearing by the applicant must be filed within 21 days of receipt of this written notice. Petitions filed by any persons other than the applicant, and other than those entitled to written notice under Section 120.60(3), F.S., must be filed within 21 days of publication of the notice or within 21 days of receipt of the written notice, whichever occurs first. Under Section 120.60(3), F.S., however, any person who has asked the Department for notice of agency action may file a petition within 21 days of receipt of such notice, regardless of the date of publication. The failure to file a petition within the appropriate time period shall constitute a waiver of that person's right to request an administrative determination (hearing) under Sections 120.569 and 120.57, F.S., or to intervene in this proceeding and participate as a party to it. Any subsequent intervention (in a proceeding initiated by another party) will be only at the discretion of the presiding officer upon the filing of a motion in compliance with Rule 28-106.205, F.A.C.

Extension of Time

Under Rule 62-110.106(4), F.A.C., a person whose substantial interests are affected by the Department's action may also request an extension of time to file a petition for an administrative hearing. The Department may, for good cause shown, grant the request for an extension of time. Requests for extension of time must be filed with the Office of General Counsel of the Department at 3900 Commonwealth Boulevard, Mail Station 35, Tallahassee, Florida 32399-3000, or via electronic correspondence at Agency_Clerk@dep.state.fl.us, before the applicable deadline for filing a petition for an administrative hearing. A timely request for extension of time shall toll the running of the time period for filing a petition until the request is acted upon.

Mediation

Mediation is not available in this proceeding.

Judicial Review

Any party to this action has the right to seek judicial review pursuant to Section 120.68, F.S., by

filing a Notice of Appeal pursuant to Rules 9.110 and 9.190, Florida Rules of Appellate Procedure, with the Clerk of the Department in the Office of General Counsel, 3900 Commonwealth Boulevard, Mail Station 35, Tallahassee, Florida 32399-3000; and by filing a copy of the Notice of Appeal accompanied by the applicable filing fees with the appropriate District Court of Appeal. The Notice of Appeal must be filed within 30 days from the date this action is filed with the Clerk of the Department.

The files associated with this order are available upon request. Please address your request to MiningAndMitigation@dep.state.fl.us and include the file number in your request.

Executed in Tallahassee, Florida.

STATE OF FLORIDA DEPARTMENT OF ENVIRONMENTAL PROTECTION



Digitally signed by Marisa Rhian
Date: 2026.05.18 15:32:46 -04'00'

Marisa Rhian, PWS, CWE
Program Administrator
Mining and Mitigation Program

Prepared by Bethany Carrell

Copies furnished to:

DEP, FL Div. of Recreation & Parks, District IV Administration – Chris.Becker@dep.state.fl.us
John McKenzie – Assistant Bureau Chief-Recreation & Parks, John.McKenzie@FloridaDEP.gov
USACE, Jacksonville District, Mining Team – CESAJ-Mine.Team@usace.army.mil
Jack Lohmann - jlohmann@alumni.princeton.edu
W. Ben Hart, CMSP - W. Ben Hart & Associates - WBenHart@gmail.com
Gregory M. Hitz, P.G., Seminole Tribe, Herbert Consultants – gmhitz@lampl-herbert.com
Lance McNeill, Minerals Development - lance@mindev.us
Susan L. Stephens – Stearns Weaver Miller – sstephens@stearnsweaver.com
Seminole Tribe of Florida, ExternalENV@semtribe.com
Seminole Tribe of Florida, Stacy D Myers III - StacyMyers@semtribe.com
Seminole Tribe of Florida, Ashley Wilson - ashleywilson1@semtribe.com
Amanda Stewart, Stewart Materials - amanda@stewartmaterials.com
Roger Burns, Stewart Materials - roger@stewartmaterials.com
Rudd Jones, Stewart Materials - rudd@stewartmaterials.com
Lisa Daugherty, Kleinfelder – ldaugherty@kleinfelder.com
Edward Murawski, Kleinfelder – Emurawski@Kleinfelder.com
Karen Miller, TCC-FPSI, Millerka@tcc.fl.edu
NWFWD - nwferp@nwfwater.com
DEP Northwest district – NWD_ERP_Applications@dep.state.fl.us
FWC - ImperiledSpecies@MyFWC.com
US Fish and Wildlife Service, Panama City Field Office, panamacity@fws.gov
Elizabeth Orr, FDEP Northwest District, Water Resources Assistant Director,
Elizabeth.Orr@dep.state.fl.us

Dawn Templin, FDEP Northwest District, Dawn.Templin@dep.state.fl.us
Selina Potter, NFWFMD ERP Bureau Chief, Selina.Potter@nwfwater.com
Chris Shortt, NFWFMD Engineer, Chris.Shortt@nwfwater.com
Tom Brown, NFWFMD Well Permitting Program Manager, Tom.Brown@nwfwater.com
USACOE, North Permits Branch - SAJ-RD-N@usace.army.mil
USACOE, Panama City Section – Lisa.S.Lovvorn@usace.army.mil
Elva Peppers (Florida Environmental & Land Services Inc.), elvapeppers@felsi.org
Mining and Mitigation File

FILING AND ACKNOWLEDGMENT

FILED, on this date, pursuant to Section 120.52, F.S., with the designated Department Clerk, receipt of which is hereby acknowledged.



Clerk

May 19, 2026

Date